

Court No. - 46

Case :- WRIT - C No. - 21385 of 2020

Petitioner :- Rajeev Dube

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Suresh Kumar, Anand Swaroop
Dubey

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

The case is adjourned at the request of Sri Mukesh Kumar learned counsel for respondent no. 2 to enable him to obtain instructions.

Let this petition be placed as unlisted on 15.12.2020.

Order Date :- 8.12.2020

Vikram

Court No. - 21

Case :- WRIT - C No. - 21385 of 2020

Petitioner :- Rajeev Dube

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Suresh Kumar, Anand Swaroop
Dubey

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Sanjay Kumar Pachori, J.

Put up this matter again on 21.1.2021 in the Additional Cause List showing the name of Shri Mukesh Kumar, learned counsel for the respondent no.2.

The assignment, if any, stands discharged.

Order Date :- 13.1.2021

T. Sinha

Case :- WRIT - C No. - 21385 of 2020

Petitioner :- Rajeev Dube

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Suresh Kumar, Anand Swaroop Dubey

Counsel for Respondent :- C.S.C., Mukesh Kumar

Hon'ble Naheed Ara Moonis, J.

Hon'ble Dinesh Pathak, J.

Heard learned counsel for the petitioner, Shri Mukesh Kumar, learned counsel for respondent No. 2 and learned Standing Counsel representing the State.

The instant writ petition has been filed with the following relief:

"1. Issue a writ, order or direction in the nature of certiorari quashing the impugned demand notice dated 25.9.2020 issued by respondent No. 2.

2. Issue a writ, order or direction in the nature of mandamus directing the respondent No. 2 to decide the case of the petitioner finally and till then the respondents concerned may be restrained, not to recover/realize any of the amount in pursuance of the impugned demand notice dated 25.9.2020 based on provisional assessment order dated 17.7.2020."

Submission of learned counsel for the petitioner is that demand notice has been issued against the petitioner without deciding the objection of the petitioner, which was already received in the office of Executive Engineer as is evident from the letter dated 18.8.2020 of respondent No. 2 and hence without considering the objection of the petitioner, he cannot be compelled to deposit the amount as mentioned in the demand notice. Learned counsel for the petitioner further submits that the respondents have not proceeded in accordance with the provisions contained in Section 126(3) of the Electricity Act and Clause 8 of the Electricity Supply Code, 2005.

Learned counsel appearing on behalf of the Power Corporation has not been able to demonstrate that demand notice has been issued by the authority concerned after considering the representation of the petitioner.

In this view of the matter, we dispose of the writ

petition with the directions to the petitioner to move a fresh representation before respondent No. 2 within two weeks from today, which shall be considered and decided by a reasoned and speaking order by respondent No. 2 strictly in accordance with law within four weeks thereafter after affording due opportunity of hearing to the petitioner.

For a period of six weeks or till the disposal of representation by respondent No. 2, whichever is earlier, no coercive measure shall be taken against the petitioner.

Order Date :- 21.1.2021

Ishrat